



SPONSOR: Rep. Morrison & Sen. Pinkney
Reps. K. Johnson, Berry, Snyder-Hall, Chukwuocha,
Heffernan, Neal; Sens. Sokola, Townsend, Hoffner

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 252

AN ACT TO AMEND TITLE 16 OF THE DELAWARE CODE RELATING TO CONTROLLED SUBSTANCES AND
COUNTERFEIT CONTROLLED SUBSTANCES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 4764, Title 16 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 4764. Possession of marijuana; ~~class B misdemeanor~~, unclassified ~~misdemeanor~~, misdemeanor or civil violation
[For application of this section, see 80 Del. Laws, c. 38, § 6].

(d) Any person who knowingly or intentionally uses or consumes up to a personal use quantity of a controlled
substance or a counterfeit controlled substance classified in § 4714(d)(19) of this title in an area accessible to the public or
in a moving vehicle, except as otherwise authorized by this chapter, ~~shall be guilty of an unclassified misdemeanor~~ is guilty
of a civil violation, and may be fined not more than \$200, \$50 for a first violation and \$100 for subsequent violations.
~~imprisoned not more than 5 days, or both.~~ For purposes of this section "area accessible to the public" means any of the
following:

SYNOPSIS

This Act makes use or consumption of a personal use quantity of a controlled substance or counterfeit controlled
substance classified in section 4714(d)(19) of Title 16 (products containing marijuana or tetrahydrocannabinols) in an area
accessible to the public or in a moving vehicle a civil violation rather than a misdemeanor, and changes the potential
penalties for this offense to a fine of up to \$50 for a first offense and up to \$100 for subsequent offenses. This Act does not
affect the ability of law enforcement to arrest and charge individuals who operate motor vehicles while under the influence
of controlled substances under Title 21 of the Delaware Code.

This Act also makes a technical correction to delete a reference in a section title to a previously repealed
subsection.